

**ISDA®**

International Swaps and Derivatives Association, Inc.

## **2002 MASTER AGREEMENT**

dated as of 19 September 2018

between

**Databricks Capital Markets LLC**

("Party A")

and

**Societe Generale S.A.**

("Party B")

Document ID: CP16 | Counterparty: Societe Generale | LEI: O2RNE8IBXP4R0TD8PU41

Governing Law: English Law | Base Currency: EUR

## **PREAMBLE**

This 2002 Master Agreement (this “Agreement”) is made as of 19 September 2018 between **Databricks Capital Markets LLC**, a company organised under the laws of Delaware, United States (“Party A”), and **Societe Generale S.A.**, a dealer organised under the laws of French Republic (“Party B”). The parties have entered and/or anticipate entering into one or more transactions (each a “Transaction”) that are or will be governed by this Master Agreement, which includes the schedule (the “Schedule”), and the documents and other confirming evidence (each a “Confirmation”) exchanged between the parties confirming those Transactions.

## **PRINTED FORM — 2002 ISDA MASTER AGREEMENT**

### **1. Interpretation**

(a) Definitions. The terms defined in Section 14 and elsewhere in this Master Agreement will have the meanings therein specified for the purpose of this Master Agreement. (b) Inconsistency. In the event of any inconsistency between the provisions of the Schedule and the other provisions of this Master Agreement, the Schedule will prevail. In the event of any inconsistency between the provisions of any Confirmation and this Master Agreement, such Confirmation will prevail for the purpose of the relevant Transaction. (c) Single Agreement. All Transactions are entered into in reliance on the fact that this Master Agreement and all Confirmations form a single agreement between the parties, and the parties would not otherwise enter into any Transactions.

### **2. Obligations**

(a) General Conditions. Each party will make each payment or delivery specified in each Confirmation to be made by it, subject to the other provisions of this Agreement. Payments under this Agreement will be made on the due date for value on that date in the place of the account specified in the relevant Confirmation, in freely transferable funds. (c) Netting of Payments. If on any date amounts would otherwise be payable in the same currency and in respect of the same Transaction by each party to the other, then such amounts will be aggregated and the party owing the larger amount will pay the excess. Multiple Transaction Payment Netting applies as specified in the Schedule. (d) Deduction or Withholding for Tax. All payments will be made without withholding or deduction for Tax unless required by law, in which case the payer shall pay such additional amounts (gross-up) as set out in this Section, subject to the exceptions for Indemnifiable Tax.

### **3. Representations**

Each party makes the representations contained in Section 3(a) (Basic Representations), including status, powers, no violation or conflict, consents and obligations binding; Section 3(b) Absence of Certain Events; Section 3(c) Absence of Litigation; Section 3(d) Accuracy of Specified Information; Section 3(e) Payer Tax Representation; Section 3(f) Payee Tax Representations; and Section 3(g) No Agency. Additional representations, if any, are specified in Part 5 of the Schedule.

### **4. Agreements**

Each party agrees to furnish specified information and any documents specified in the Schedule (including tax forms); to use reasonable efforts to maintain authorisations and comply with applicable laws; to give notice of any Event of Default or Potential Event of Default; and to comply with the tax agreements set out in this Section.

### **5. Events of Default and Termination Events**

(a) Events of Default. The occurrence of any of the following constitutes an Event of Default with respect to a party: (i) Failure to Pay or Deliver; (ii) Breach of Agreement; Repudiation of Agreement; (iii) Credit Support Default; (iv) Misrepresentation; (v) Default under Specified Transaction; (vi) Cross-Default (if specified as applying in the Schedule), meaning the occurrence of a default in respect of Specified Indebtedness in an aggregate amount not less than the applicable Threshold Amount; (vii) Bankruptcy; and (viii) Merger Without

Assumption. (b) Termination Events. The occurrence of any of the following constitutes a Termination Event: (i) Illegality; (ii) Force Majeure Event; (iii) Tax Event; (iv) Tax Event Upon Merger; and, if specified in the Schedule, (v) Credit Event Upon Merger and (vi) Additional Termination Event. (d) Deferral of Payments and Deliveries During a Waiting Period applies in respect of Illegality and Force Majeure Event.

## **6. Early Termination; Close-out Netting**

(a) Right to Terminate Following Event of Default. If at any time an Event of Default has occurred and is then continuing, the Non-defaulting Party may, by not more than 20 days notice, designate an Early Termination Date in respect of all outstanding Transactions. (b) Right to Terminate Following Termination Event. If a Termination Event occurs, an Affected Party will notify the other and the parties will follow the transfer / close-out procedure. (a) Automatic Early Termination. If specified in the Schedule as applying, then certain Bankruptcy Events of Default will automatically constitute an Early Termination Date. (e) Payments on Early Termination. The amount payable will be determined using the Close-out Amount and the Payment Measure elected in the Schedule, and will be paid in the Termination Currency. Set-off applies as specified in the Schedule.

## **7. Transfer**

Subject to the Credit Support Documents and except as provided in Section 6(b)(ii), neither party may transfer any interest or obligation under this Agreement without the prior written consent of the other party, except pursuant to a consolidation, amalgamation, merger, or transfer of all or substantially all its assets to another entity.

## **8. Contractual Currency**

Each payment under this Agreement will be made in the relevant currency specified for that payment (the Contractual Currency). To the extent permitted by law, any obligation to make payments in the Contractual Currency will not be discharged by payment in another currency except to the extent the recipient may purchase the Contractual Currency.

## **9. Miscellaneous**

(a) Entire Agreement. This Agreement constitutes the entire agreement of the parties. (b) Amendments must be in writing. (e) Counterparts. This Agreement may be executed in counterparts, each of which is an original. (h) Interest and Compensation is payable on defaulted and deferred amounts at the Default Rate or the Applicable Deferral Rate as provided herein.

## **10. Offices; Multibranch Parties**

Each party that enters into a Transaction through an Office other than its head or home office represents that its obligations are the same as if it had entered into the Transaction through its head or home office. A party is a Multibranch Party if so specified in Part 4 of the Schedule and may act through any of the Offices listed there.

## **11. Expenses**

A Defaulting Party will, on demand, indemnify and hold harmless the other party for and against all reasonable out-of-pocket expenses, including legal fees and Stamp Tax, incurred by reason of the enforcement and protection of its rights under this Agreement.

## **12. Notices**

Any notice or communication in respect of this Agreement will be effective if in writing and delivered in person, by courier, by certified mail, or by electronic messaging system or e-mail to the address specified in Part 4 of the Schedule. A notice designating an Early Termination Date may not be given by electronic messaging system or e-mail.

### **13. Governing Law and Jurisdiction**

(a) Governing Law. This Agreement will be governed by and construed in accordance with the law specified in the Schedule. (b) Jurisdiction. Each party submits to the jurisdiction of the courts specified in the Schedule. (c) Service of Process. Each party appoints the Process Agent (if any) specified in Part 4 of the Schedule. (d) Waiver of Immunities.

### **14. Definitions**

As used in this Agreement: Affiliate; Close-out Amount; Confirmation; Credit Support Document; Credit Support Provider; Cross-Default; Default Rate; Early Termination Date; Event of Default; Illegality; Force Majeure Event; Multiple Transaction Payment Netting; Non-defaulting Party; Office; Specified Entity; Specified Indebtedness; Specified Transaction; Tax; Termination Currency; Threshold Amount; and other terms have the meanings given in this Section 14 and the 2006 ISDA Definitions as incorporated.

## SCHEDULE to the 2002 Master Agreement

dated as of 19 September 2018 between Databricks Capital Markets LLC ("Party A") and Societe Generale S.A. ("Party B")

### Part 1. Termination Provisions

(a) "Specified Entity" means, in relation to Party B for all purposes, **any Affiliate**. In relation to Party A, none is specified.

(b) "Specified Transaction" will have the meaning specified in Section 14 and shall include, without limitation, the following product types transacted between the parties: **Interest Rate Swaps, Equity Swaps, Commodity Swaps, FX Forwards**.

(c) The "Cross-Default" provisions of Section 5(a)(vi) **will apply** to Party A and Party B. "Specified Indebtedness" has the meaning specified in Section 14. "Threshold Amount" means, with respect to each party, **EUR 80,000,000** (or its equivalent in any other currency).

(d) The "Automatic Early Termination" provision of Section 6(a) **will apply** to Party B and will not apply to Party A.

(e) "Termination Currency" means **EUR**.

(f) "Additional Termination Event" **will apply**. The following shall each constitute an Additional Termination Event with respect to Party B (the Affected Party): **Ratings Downgrade below BBB (S&P); Bail-in / Resolution Event**.

### Part 2. Tax Representations

(a) Payer Tax Representations. For the purpose of Section 3(e), each of Party A and Party B makes the standard Payer Tax Representation. (b) Payee Tax Representations. For the purpose of Section 3(f), each party makes the representations appropriate to its jurisdiction of organisation (French Republic for Party B).

### Part 3. Agreement to Deliver Documents

Each party agrees to deliver, upon execution and upon request, the following documents: (i) an incumbency certificate and evidence of authority; (ii) an executed U.S. Internal Revenue Service Form W-9 or W-8BEN-E (as applicable); (iii) its most recent audited annual financial statements; and (iv) a legal opinion reasonably satisfactory to the other party. Party B's LEI is O2RNE8IBXP4R0TD8PU41.

### Part 4. Miscellaneous

(a) Addresses for Notices. Party A: New York Office, attention Legal Department, Derivatives Documentation. Party B: Paris Office, attention ISDA Documentation Unit. (b) Process Agent. Party B appoints a Process Agent in the jurisdiction of the governing law where required. (c) Offices; Multibranch Party. Party B is a Multibranch Party. (d) Calculation Agent: Party A, unless otherwise agreed in a Confirmation. (e) Credit Support Document: in relation to Party B, the English Law VM CSA (Transfer - Title Transfer). (f) Credit Support Provider: any Affiliate. (g) Governing Law: this Agreement will be governed by and construed in accordance with **English law**. (h) Netting of Payments: Multiple Transaction Payment Netting applies to all Transactions.

### Part 5. Other Provisions

(a) ISDA Definitions. The 2006 ISDA Definitions are incorporated into each Confirmation. (b) Relationship Between Parties. Each party represents non-reliance, that it is acting as principal, and that it has the capacity to evaluate and understand the Transaction. (c) Set-off. Upon the occurrence of an Early Termination Date, the Non-defaulting Party may set off any Early Termination Amount against any other amounts owing between the parties. (d) 2013 ISDA EMIR / Dodd-Frank Protocol provisions and the applicable Regulatory Margin

Requirements are incorporated by reference. (e) Bail-in Acknowledgement: to the extent Party B is an EEA or UK financial institution, the parties acknowledge the contractual recognition of bail-in under Article 55 BRRD.

## CREDIT SUPPORT ANNEX

### English Law VM CSA (Transfer - Title Transfer) — Paragraph 11 Elections

This Credit Support Annex supplements, forms part of, and is subject to the 2002 Master Agreement dated as of 19 September 2018 between Databricks Capital Markets LLC and Societe Generale S.A..

(a) Base Currency and Eligible Currency. "Base Currency" means **EUR**. (b) Credit Support Obligations. "Delivery Amount" and "Return Amount" have the meanings in Paragraph 3.

(c) Thresholds. "Independent Amount" means with respect to Party B: **EUR 8,000,000**. "Threshold" means with respect to Party B: **EUR 16,000,000**. "Minimum Transfer Amount" means with respect to each party: **EUR 500,000**. Rounding: Delivery and Return Amounts will be rounded up and down respectively to the nearest integral multiple of 10,000 units of the Base Currency.

(d) Eligible Collateral. Cash in the Base Currency (Valuation Percentage 100%); negotiable debt obligations issued by the U.S. Treasury with a remaining maturity of not more than one year (Valuation Percentage 99.5%), one to ten years (98%), and over ten years (96%). (e) Valuation and Timing. Valuation Agent: Party A. Valuation Date: each Local Business Day. Notification Time: 1:00 p.m. on the Local Business Day. (f) Dispute Resolution: as per Paragraph 5. (g) Holding and Using Posted Collateral; Custodian; Interest Rate on cash equal to the relevant overnight risk-free rate (SOFR for USD; €STR for EUR; SONIA for GBP).